

WRITTEN SUBMISSIONS · 16 MAR 1998

Written submissions in reply

TYPE	DATE	PARTIES
Pleadings / procedural document	16 Mar 1998	Bernard Collorafi v. McDonald's France

SUMMARY SHEET

Written submissions in reply — Collorafi companies v. McDonald's France · 16 March 1998

Overview: written submissions in reply filed on behalf of the companies SEBOL, B et O and LES PINS, and of Bernard Collorafi in his personal capacity, before the first chamber of the Paris Commercial Court, against SA McDonald's France.

Key points

The parties filing the submissions denounce the procedural conduct of McDonald's, which had its written submissions sent by fax shortly before the deliberation. They return to the forecasts provided at the outset and dispute the report of Mr Alain Husson Dumoutier, set against that of the court-appointed expert Robert Gandur, which they consider subjective because it relies on documents originating from McDonald's. They ask the court in particular to suspend the termination clause, to grant a period of twenty-four months, and to order McDonald's:

- to pay 2,000,000 F to SEBOL, 2,500,000 F to B et O, 2,500,000 F to LES PINS and 500,000 F to Mr Collorafi in damages;
- in the further alternative, upon termination attributable to McDonald's, to pay 9,600,000 F, 22,200,000 F, 13,250,000 F and 2,000,000 F respectively.

Significance

These pleadings set out the franchisees' arguments and their compensation claims before the Paris court, in response to McDonald's counterclaim.

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Source: bernardcollorafi.org/en/documents/written-submissions-reply-paris-commercial-court-collorafi-mcdonalds-franchise-1998/ — Documentary case file of the lawsuit Bernard Collorafi v. McDonald's France (Antibes, 1987–2002). The original scan is authoritative.